MBCM | STRATA SPECIALISTS
BAYSWATER

Suite 15, 50 New Street, Ringwood, VIC 3134
Phone 03 9874 6796 | **Email** info@bayswater.mbcm.com.au | **Website** mbcm.com.au/bayswater

NOTICE OF ANNUAL GENERAL MEETING

OWNERS CORPORATION 2 PLAN NO. PS426698D
1 BERTRAM RD, BAYSWATER 3153

Date of Notice: 17 April 2026

Dear Owners Corporation Members,

Please find enclosed Notice of your Annual General Meeting (AGM) in accordance with Section 72 of the *Owners Corporations and Other Acts Amendments Act 2021*, the *Owners Corporations Regulations 2018,* and the *Owners Corporation Rules*.

If you have any questions regarding the financial statements or proposed budgets, please submit them to our office no later than 3 business days prior to the meeting. This ensures we can provide accurate and complete answers during the AGM.

The Annual General Meeting for the Owners Corporation will be held online via Zoom:

Date:	**Tuesday, 5 May 2026**
Time:	4:00PM
Join via video/audio:	https://us02web.zoom.us/j/81760569399?pwd=LvpBsSWLZvs20s9De91qQ6I1wFlHaq.1
Join via telephone:	Phone: +61 3 7018 2005
Meeting ID:	817 6056 9399
Participant ID:	#
Password:	506389

Please be aware that one hour is allocated for your Annual General Meeting. The agenda sets the framework for the Meeting and will be followed. To avoid participants from talking over each other, we request that your microphone is muted during the meeting unless you are speaking. To speak at any time, click the microphone icon to mute or unmute your microphone; alternatively hit the space button (on your keyboard) or press “6” on your phone keypad.

Note: To join the call via telephone, when prompted enter the meeting id number followed by #, then enter your participant id by choosing a random number between 1 and 99 followed by #

- ☑ A Managers Contract of Appointment may be tabled at the meeting which if accepted, will replace the current contract.

If you have any questions regarding the financial statements or proposed budgets, please submit them to our office no later than 3 business days prior to the meeting. This ensures we can provide accurate and complete answers during the AGM.

We look forward to meeting with Members at your Annual General Meeting.

Details of Person Giving This Notice:

Name: Vanessa Bucci
Position: Owners Corporation Manager
Address: Suite 15, 50 New Street Ringwood, VIC 3134
Phone: 03 98746796

AGENDA OF ANNUAL GENERAL MEETING

OWNERS CORPORATION 2 PLAN NO. PS426698D
1 BERTRAM RD, BAYSWATER 3153

1. GENERAL

a) Appointment of Chairperson.
b) Apologies, Proxies, Quorum & Entitlement to Vote.
c) The Owners Corporation resolves to accept the Minutes of the previous Annual General Meeting of the Owners Corporation held on 29/04/2025 as a true and accurate record of the proceedings of that Meeting and as part of the Owners Corporation's record.

2. REPORTS

a) The Owners Corporation resolves to accept the Management Report as presented.
b) The Owners Corporation resolves to adopt the Standing resolutions as presented.
c) Other Reports – Complaints, Debt Recovery (VCAT), Building orders, and/or notices.
d) The Owners Corporation resolves to undertake an OH&S Inspection Report.

3. INSURANCE

INSURER:	CHU UNDERWRITING AGENCIES P/L
BROKER:	HONAN INSURANCE BROKERS
POLICY NUMBER:	19814
BUILDING SUM:	$4,040,000.00
LEGAL LIABILITY:	$30,000,000.00
OFFICE BEARERS:	$1,000,000.00
RENEWAL DATE:	25/06/2026
VALUATION DATE:	4/03/2025
VALUATION SUM:	$4,040,000.00
EXCESS:	$2,000.00
ADDITIONAL EXCESS:	Legal Defence Expenses: $ 1,000

Other excesses payable are shown in the policy wording.

The Owners Corporation members will determine if they wish to:

a) Obtain an insurance valuation and renew their policy to the recommended building sum insured amount.
b) Retain the current Building Sum insured amount.
c) Accept the Insurance Policy directly through the Insurer, or
d) Accept the Insurance Policy directly through a Strata Specialist Insurance Broker.
e) Obtain quotations for insurance.
f) Retain, increase, or decrease the Legal Liability cover
g) Add, retain, increase or decrease the Office Bearers cover

4. GENERAL BUSINESS

General Business

5. FINANCIALS

a) Acceptance of Financial Statements

The Owners Corporation resolves to accept the Annual Financial Statement for the year ending 31/03/2026 as presented.

b) Owners Corporation Budget and Levy Contribution

The Owners Corporation resolves to adopt the Owners Corporation **administrative** budget for the year ending 31/03/2027 of **$14,560.00** and to levy amounts to Lot Owners based on Lot Liability.

Please refer to the attached Budget.

6. OWNERS CORPORATION MANAGEMENT

a) Election of a Chairperson

The Owners Corporation resolves to elect a chairperson for the property with delegated powers or restricted powers.

b) Appointment of Management Company

The Owners Corporation resolves to appoint MBCM Bayswater for a 24-month period in accordance with the SCA Contract of Appointment and delegate to MBCM Bayswater all the powers and functions of the Owners Corporation (other than power or function that requires a unanimous resolution or a special resolution or this power of delegation) that are necessary to enable MBCM Bayswater to perform its duties under the Appointment unless a chairperson is delegated these functions.

7. CLOSURE OF MEETING

8. INFORMATION ABOUT PROXIES:

We encourage all Members to attend this Meeting

You can now lodge your proxy by scanning the QR code adjacent, using your smartphone or tablet with a QR code reader application. Alternatively, you can appoint your proxy via the link Proxy form link or completing the enclosed *Owners Corporation Proxy Form* and returning it to our office prior to the meeting. If appointing a Power of Attorney as a proxy, please attach a copy of the Power of Attorney. If less than 50% of owners are present at the meeting, using your proxy may help to achieve a quorum.	

You have a right to appoint a Proxy to represent you at this Meeting

In accordance with Owners Corporations and Other Acts Amendments Act 2021, Section 89D - Restriction on number of lot owners on behalf of whom a proxy may vote on a resolution:

- A person must not vote as a proxy on a resolution at a meeting of the Owners Corporation - (a) on behalf of more than one lot owner - if there are 20 or less occupiable lots on the plan of subdivision; or (b) on behalf of more than 5% of the lot owners - if there are more than 20 occupiable lots on the plan of subdivision.

- As per the restrictions set out above for our office to hold a proxy on a lot owners behalf, if you wish to appoint the Manager for MBCM Strata Specialists as your proxy, the first proxy received will be allocated to MBCM Strata Specialists for representation. Any subsequent proxies received will be returned to the lot owner.

9. FREQUENTLY ASKED QUESTIONS:

What if I have not paid my Owners Corporation Fees before the Annual General Meeting?

Voting Restrictions: If your fees are overdue, you may lose your right to vote at the AGM. The Act states that only financial members (those who have paid their fees) are entitled to vote on resolutions at the AGM. If you are not financial, you cannot vote on any matters, including the election of committee members or budget approvals.

Attendance at AGM: While you may not be able to vote, you are generally still allowed to attend the AGM and participate in discussions. It is important to stay informed about decisions and changes within the OC.

What if I have questions about the Financial Report and/or Budget?

Any queries regarding the proposed budget, fees and financial reports and statements must be received by the Manager in writing at least three days prior to the Meeting.

What if I have questions about the Agenda?

Any queries regarding Agenda items must be received by the Manager in writing at least three days prior to the Meeting.

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MANAGERS REPORT FOR THE FINANCIAL YEAR ENDING 31/03/2026

OWNERS CORPORATION **2** PLAN NO**. PS426698**D
1 BERTRAM RD, BAYSWATER, 3153

MANAGER: Vanessa Bucci

INTRODUCTION

PREAMBLE

The Importance of attending your Annual General Meeting

It is essential that you make every effort to attend your Annual General Meeting so that you can be involved in decisions relating to your property. This is the one time of the year when every owner has an opportunity to meet as a community to discuss challenges, maintenance, improvements, required adjustments and resolutions. It is also the time to review expenditures and plan your budget for the coming year. If for some reason you are unable to attend, you have the option to appoint someone to represent you as a proxy such as a family member, another Owner or your Owners Corporation Manager.

MEETING RULES

All meeting participants will speak and listen respectfully to one another, refrain from side conversations, make sure every voice is heard, speak one at a time, keep to the agenda, and start and end on time.

Financial Statements: Queries regarding the financial statements must be submitted to the Owners Corporation Manager/Owners Corporation Consultant no less than 72 hours prior to the Meeting. Any queries not submitted in this time frame may not be addressed during the Meeting.

PROFESSIONAL INDEMNITY INSURANCE AND LICENSING

The Owners Corporation Manager/Owners Corporation Consultant holds a Professional Indemnity Insurance policy to the value of $2 Million with CHUBB – Elite III Miscellaneous Professional Indemnity Insurance, which is current to 31st March 2025. The Manager/Owners Corporation Consultant is licensed with the Business Licensing Authority – Registration No. 721.

NOTICE BY MANAGER – KNOWN AS OWNERS CORPORATION CONSULTANT

The Annual General Meeting will be conducted to record decisions made by the Owners Corporation/s and not the Property Consultant or the Management Company. The role of the Property Consultant and/or Manager is to conduct the administrative affairs of the Owners Corporation/s and **not** to make any decisions on behalf of the Owners Corporation. The decisions of the Owners Corporation/s are made independently by the Members of the Owners Corporation, and the property consultant does not, in the carrying out of its role, provide legal, accounting, engineering, or building advice. The Owners Corporation/s must take professional independent legal, accounting, engineering, or building advice as it sees fit and must not rely upon any general comments made in good faith by the consultant. The property consultant acts impartially in accordance with the duties set out in section 122 of the Owners Corporations Act 2006 (Vic) & the Owners Corporation and Other Amendments Act 2021 based upon lawful decisions made by the Owners Corporation/s. The property consultant does **not** act on behalf of any Member or group of Members or in any manner discriminatory of any person/s, Member, or group of Members.

BALLOTS

The following ballots were conducted throughout the year:

- Insurance 2025-2026 – Passed with Chu Underwriting

RULES, GRIEVANCES AND DISPUTES

For the year ending **31/03/2026**, no Complaints were reported under Part 10 of the Act, and no applications were commenced in the Victorian Civil and Administrative Tribunal.

Final Fee Notices issued: 0

Number of Breach Notices issued: 0

REPORTS ON VALUATIONS AND INSPECTIONS

Last Property Valuation 4/03/2025
Last OH&S Inspection *Not Undertaken*
Last Asbestos Inspection *Not Undertaken*

There have been no incidents to report this year.

If the Owners Corporation resolves to undertake a report, they agree that any high-risk works that are recommended to be carried out are done so without delay and funded via the repairs and maintenance budget or by a special levy if the amount exceeds the available funds.

If Owners Corporation members elect to self-monitor, it is resolved that the Owners Corporation indemnifies MBCM Strata Specialists Bayswater for any potential PI claim resulting from an OH&S hazard.

OWNERS CORPORATION RULES

The Owners Corporation, owners, occupants, and guests are bound by the Model Rules and regulations set out under the *Owners Corporation Regulations 2018*, which came into effect in December 2018.

A copy of the Model Rules can be found here: https://Model Rules

A copy is available from our office upon request.

All owners are reminded that it is their responsibility to ensure that all tenants and agents are provided with a copy of the Rules. All owners and tenants, including their invitees, are bound by the Rules.

DISCLOSURE OF COMMISSIONS, PAYMENTS, OR OTHER BENEFITS

Name of company/supplier	Details of beneficial relationship	Details of accreditation
CHU Underwriting Agencies Pty Ltd	Commission on base premium for Strata Insurance and Executive Education	Authorised representative number 433335
Honan Insurance Group Pty Ltd	Commission on base premium for Strata Insurance	Authorised Distributor

Strata Community Insurance Agencies Pty Ltd	Commission on base premium for Strata Insurance and Executive Education	SCI Distributor No. V0113401
AGL	$30 paid to MBCM Franchisor per Owners Corporation which signs up to an AGL electricity or gas plan. $20 paid to the MBCM Franchisor centralized marketing fund per Owners Corporation which signs up to an AGL electricity or gas plan.	
Sponsors of Strata Community Australia	Sponsors may fund events provided by the SCA which may reduce event costs	
MBCM Strata Specialists Franchisor	Sponsors may fund events provided by the MBCM Strata Specialists which may reduce event costs	

MBCM Strata Specialists Bayswater will receive a commission of up to 20% on the base premium (excluding government taxes, duties, and levies) for the insurance policies. $1,190.54 received. This remuneration is included in the cost of the product and is not calculated in addition to the cost of the product.

Your Owners Corporation manager can provide general or factual insurance advice only. Members should read the Product Disclosure Statement and Financial Services Guide which are issued with insurance documentation and available upon request.

OWNERS CORPORATION MANAGEMENT

MBCM WEBSITE & COMMUNITY HUB:

MBCM Strata Specialists Bayswater website: *https://MBCM BAYSWATER* and the Community Hub (Owners Portal) provides an online service for Members to access relevant information, including:

- A comprehensive library of strata-related information and solutions including blog, FAQs and Owners Corporation case Studies for your reference
- Information pertaining to legislative changes
- Services, resources
- Property Reports
- Insurance Certificates
- Unit cashbook financials

STANDING RESOLUTIONS

The following are the standing resolutions of the Owners Corporation, which remain in place from year to year unless the Owners Corporation resolves to change them. *It is important to check these resolutions as Members will be asked to ratify these at the Annual General Meeting. If, at the Meeting, a proposal is received by an owner to change them, the proposal will be considered and decided upon at the Meeting.*

Gutter Cleaning
The Owners Corporation resolves that Members attend to the gutter cleaning of their respective Units.

Grievance Committee
The Owners Corporation resolves to elect all members of the Owners Corporation to form a Grievance Committee, or where a Committee is elected, the Committee forms the Grievance Committee.

Asbestos
The Owners Corporation resolves not to conduct an asbestos survey of the common property after being made aware of the associated risks and against the strong advice of the Owners Corporation Consultant. This motion will not be tabled again unless a proposal is received by an owner requesting otherwise, in which case the proposal will be considered and decided upon at the Meeting.

Maintenance Plan
The Owners Corporation has resolved in 2022 not to undertake a maintenance plan.

**Tiers 1 and 2 must prepare and approve a maintenance plan. Tiers 3, 4, and 5 may prepare and approve a maintenance plan. An Owners Corporation may, by ordinary resolution, amend an approved maintenance plan and determine the amount that must be paid by annual fees.*

Financial Audit

The Owners Corporation resolved in 2022, at the end of each financial year, not to have their financial statements audited by a registered company auditor, a firm of registered company auditors or a member of CPA Aust unless the Owners Corporation is exempt.

**In accordance with the Owners Corporations and Other Acts Amendment Act 2021, Tier 1 must engage a professional Auditor, Tier 2 must engage an independent person to audit financials, Tiers 3, 4 & 5 may, at the end of each financial year, have their financial statements audited.*

Fee Collection Procedure

The Owners Corporation resolves that the fee collection procedure listed below will remain in place, and the administration charge will be updated from time to time (currently $55 for the issue of a final fee notice).

Debt Recovery
The Owners Corporation resolves, pursuant to Section 32 of the *Owners Corporations Act 2006 and the Owners Corporations and Other Amendment Act 2021*, to:

a) Issue a **Final Notice** in respect of any amount payable by a Lot Owner to the Owners Corporation that remains outstanding **60 days** after the due date for payment and
b) Refer any amount that remains outstanding 28 days after the date of the **Final Notice** to debt collection or legal representatives for recovery and/or VCAT action.

Final Notice – Administrative Fee

The Owners Corporation Consultant advised the Meeting that where a **Final Notice** is issued to a Lot Owner, the Owners Corporation Consultant may charge the Lot Owner a minimum of **1-hour Schedule 2.2 charges** for**:**

- Administration duties associated with following up arrears
- Issue of the Final Fee Notice and associated documents of advice
- Consultation with the solicitor for the arrears matter

Recovery of Costs

The Owners Corporation resolves that any and all costs incurred by the Owners Corporation in recovering fees and levies due under Section 32 of the *Owners Corporations Act 2006 and the Owners Corporations and Other Amendment Act 2021* will be fully recoverable from the indebted Lot Owner.

This includes any Administrative Fees charged by the Owners Corporation Consultant because of a Lot Owner's failure to pay fees within the stipulated period.

Owners Corporation (2) Plan No : PS426698D

1 BERTRAM RD BAYSWATER 3153

FINANCIAL REPORT FOR YEAR END 31/03/2026

Administration Fund

INCOME STATEMENT

		31/03/2026	31/03/2025
RECEIPTS			
	OC Admin Fees	$14,113.15	$12,597.35
	Pro-rata Levy	$1,042.65	$1,345.05
		$15,155.80	$13,942.40
Less PAYMENTS			
	Archive Fees	$75.00	$75.00
	Disbursements	$455.00	$455.00
	Gardening	$2,198.00	$3,635.00
	Insurance Premiums	$6,834.00	$7,177.64
	Insurance Valuation	$0.00	$495.00
	OC Management Fees	$2,170.00	$2,100.00
	Public Officers Management Services	$110.00	$110.00
	Repairs and Maintenance	$0.00	$16.50
	Schedule 2.2 Fees	$330.00	$0.00
	Trade Compliance OHS Monitoring Management Service	$125.00	$125.00
		$12,297.00	$14,189.14
	SURPLUS (DEFICIT) FOR YEAR	$2,858.80	$(246.74)

MEMBERS' FUNDS

AS AT 31 March 2026

		31/03/2026	31/03/2025
CASH BOOK			
	Opening Balance	$9,455.58	$9,702.32
	Surplus (Deficit) for Year	$2,858.80	$(246.74)
	CASHBOOK BALANCE	$12,314.38	$9,455.58
ASSETS			
	Cash At Bank	$12,314.38	$9,455.58
	Investment Account	$0.00	$0.00
	Investment Account Returns	$0.00	$0.00
	OC Fees Owing	$0.00	$0.00
Less LIABILITIES			
	OC Fees paid in Advance	$4,160.00	$3,564.20
	ACCUMULATED FUNDS (DEFICIT)	$8,154.38	$5,891.38

Owners Corporation (2) Plan No : PS426698D

1 BERTRAM RD BAYSWATER 3153

FINANCIAL REPORT FOR YEAR END 31/03/2026

Administration Fund

OC FEE ARREARS

AS AT 31 March 2026

Unit	Name	Arrears

BUDGET ESTIMATE

FOR YEAR ENDING 31 March 2027

Budget 2026	Item	Actual 2026	Budget 2027
$75.00	Archive Fees	$75.00	$75.00
$455.00	Disbursements	$455.00	$539.00
$3,625.00	Gardening	$2,198.00	$3,000.00
$8,000.00	Insurance Premiums	$6,834.00	$7,991.00
$2,170.00	OC Management Fees	$2,170.00	$2,500.00
$110.00	Public Officers Management Services	$110.00	$110.00
$0.00	Schedule 2.2 Fees	$330.00	$220.00
$125.00	Trade Compliance OHS Monitoring Management Services	$125.00	$125.00
$14,560.00		$12,297.00	$14,560.00

Current OC Fees expect $14,560.00 per annum.

To fund the above expenditure, a decrease of 0.00% is suggested

OC FEE BREAKDOWN

FOR BUDGET AMOUNT

Unit	Liability 1		Liability 2	OC Fees	Frequency
1	100.00	+	0.00	$2,080.00	(2 x $1,040.00)
2	100.00	+	0.00	$2,080.00	(2 x $1,040.00)
3	100.00	+	0.00	$2,080.00	(2 x $1,040.00)
4	100.00	+	0.00	$2,080.00	(2 x $1,040.00)
5	100.00	+	0.00	$2,080.00	(2 x $1,040.00)
6	100.00	+	0.00	$2,080.00	(2 x $1,040.00)
7	100.00	+	0.00	$2,080.00	(2 x $1,040.00)
	700.00	+	0.00	$14,560.00	

Administration Fund

SCHEDULE 2.2 MANAGEMENT FEE EXPENDITURE STATEMENT

FOR YEAR ENDING 31 March 2026

Unit No.	Activity No.	Date Paid	Work details & Payee	Expenditure
		4/06/2025	Schedule 2.2 Fees KVW Bucci Investments Pty Ltd	$330.00
				$330.00